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THE CROWN took over a month to do its summing up, which was often interrupted by interjections from the bench pointing out lapses in the argument. In March, it was our turn. Issy Maisels categorically refuted the charges of violence. “We admit that there is a question of noncooperation and passive resistance,” he said. “We shall say quite frankly that if noncooperation and passive resistance constitute high treason, then we are guilty. But these are plainly not encompassed in the law of treason.”

Maisels’s argument was continued by Bram Fischer, but on March 23, the bench cut short Bram’s concluding argument. We still had weeks of argument ahead, but the judges asked for a week’s adjournment. This was irregular, but we regarded it as a hopeful sign, for it suggested the judges had already formed their opinion. We were to return to court six days later for what we presumed would be the verdict. In the meantime, I had work to do.

My bans were due to expire two days after the adjournment. I was almost certain that the police would not be aware of this, as they rarely kept track of when bans ended. It would be the first time in nearly five years that I would be free to leave Johannesburg, free to attend a meeting. That weekend was the long-planned All-in Conference in Pietermaritzburg. Its aim was to agitate for a national constitutional convention for all South Africans. I was secretly scheduled to be the main speaker at the conference. I would make the three-hundred-mile drive down to Pietermaritzburg the night before I was scheduled to speak.

The day before I was to leave, the National Working Committee met secretly to discuss strategy. After many meetings in prison and outside, we had decided that we would work from underground, adopting a strategy along the lines of the M-Plan. The organization would survive clandestinely. It was decided that if we were not convicted I would go underground to travel about the country organizing the proposed national convention. Only someone operating full-time from underground would be free from the paralyzing restrictions imposed by the enemy. It was decided that I would surface at certain events, hoping for a maximum of publicity, to